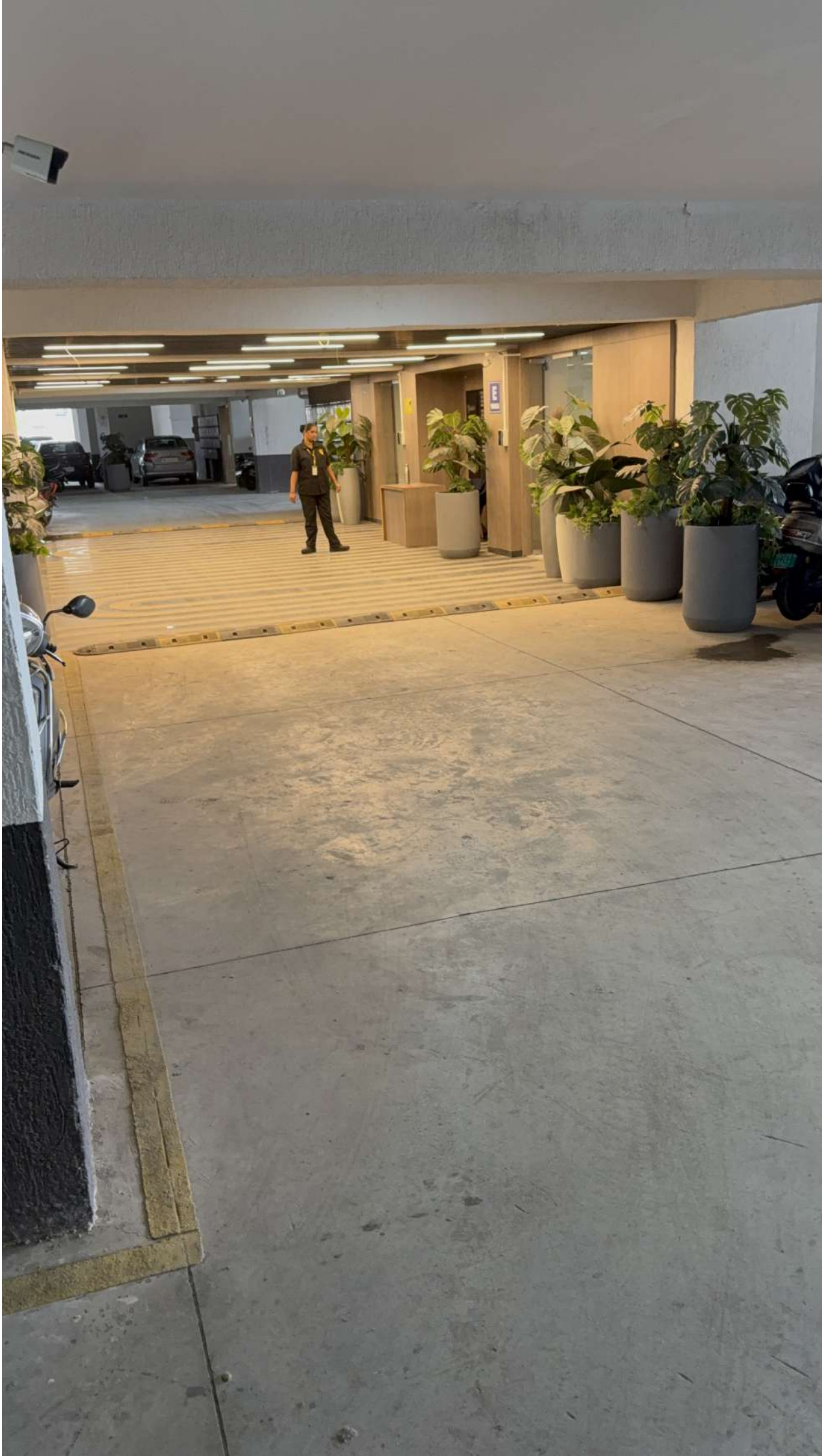

2
KONE


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Clubhouse


CLUB
HOUSE





Outlook

Re: OFFICIAL COMPLAINT Respected Sir/Madam,UNDER UDCPR 2020 & THE RPWD ACT 2016

From PMC FMC <feedback@punecorporation.org>
Date Sun 2026-05-31 17:54
To Siddhant Chothe <sidnc86@hotmail.com>

Sir/Madam,
We apologize for the inconvenience caused. Your complaint is in process and will be resolved at the earliest.
Thank you.

Regards,
Pune Municipal Corporation

Think before you print. Save Trees.

On Sun, May 31, 2026 at 5:40 PM Siddhant Chothe <sidnc86@hotmail.com> wrote:

> Thank you for taking Cognizance of the matter pertaining to Accessibility barriers and lapses.
>
> Please let me know further steps. Will there be an inspection carried out in our society premises?
>
> I understand I will be able to track status of the concern in provided link. But in case resolution needs my coordination in terms of helping involved teams understand issues and other details, who will be my Point of Contact?
>
> Many thanks! This is new beginning in history of Pune City where citizens and Government together will strive to make the city a better place for people with disabilities and elderly.
>
> Get Outlook for iOS
>
> **From:** PMC FMC <feedback@punecorporation.org>
> **Sent:** Tuesday, 26 May 2026 15:22:10
> **To:** Building Permission Department <bp@punecorporation.org>; Social Development Department <sdd@punecorporation.org>
> **Cc:** Siddhant Chothe <sidnc86@hotmail.com>
> **Subject:** Fwd: OFFICIAL COMPLAINT UNDER UDCPR 2020 & THE RPWD ACT 2016
>
> Dear Sir/Madam,
> Please look into this.

Regards,
Pune Municipal Corporation

Think before you print. Save Trees.

---------- Forwarded message ---------
From: **PMC FMC** <feedback@punecorporation.org>
Date: Tue, May 26, 2026 at 3:21 PM
Subject: Re: OFFICIAL COMPLAINT UNDER UDCPR 2020 & THE RPWD ACT 2016
To: Siddhant Chothe <sidnc86@hotmail.com>

Sir/Madam,
We have registered your complaint. Your complaint Token number is E22764 . You can check the current status of your complaint at: https://complaint.pmc.gov.in/
Thank you.

Regards,
Pune Municipal Corporation

Think before you print. Save Trees.

On Tue, May 26, 2026 at 2:52 PM Siddhant Chothe <sidnc86@hotmail.com> wrote:

> I'm including Social Development Department's email address in this email thread for better outreach and early resolution.
>
> ---
>
> **From:** Siddhant Chothe <sidnc86@hotmail.com>
> **Sent:** Tuesday, May 26, 2026 2:09 PM
> **To:** feedback@punecorporation.org <feedback@punecorporation.org>
> **Cc:** anju kale <anjana.mickey@gmail.com>
> **Subject:** OFFICIAL COMPLAINT UNDER UDCPR 2020 & THE RPWD ACT 2016
>
> From: Siddhant Chothe and Anjana Kale
> Flat 503, Wing D, Majestique Marbella,
> Chaudhari Vasti, Ashokanagar, Kharadi, Pune - 411014.
> Against:
> M/s Majestique Landmarks (Developer)
> Project: Majestique Marbella (MahaRERA No: P52100025697)
> To:
> The Grievance Officer, Pune Municipal Corporation
> Forward Copy to: Director, Social Welfare Department, Pune.
> Respected Authority,
> I am filing this formal complaint as a citizen of India, a resident of Pune, and a person with permanent visual impairment. My wife and I are both blind. We recently occupied our flat at

Majestique Marbella, Wing D, and face systematic, structural segregation daily due to the developer's complete failure to adhere to mandatory barrier-free architectural bylaws.
The project is currently active and processing phases towards final clearances. We bring to your immediate notice that the basic structural provisions for "Physically Handicapped Persons" have been bypassed in the following areas:
Inaccessible Control Interfaces (NBC 2016): All 12 residential lifts installed within the property feature flat, glass capacitive touch screens. These electronic panels offer zero tactile relief, physical feedback, or Braille indexing. This design directly violates National Building Code (NBC) 2016, Part 3, Section 13 guidelines mandating accessible lift systems for residential high-rises.
Amenity Exclusion (UDCPR Regulation 33.1): The public common spaces, including the community clubhouse, society library, and swimming pool complex, are configured exclusively with stairs. Reaching the pool requires a physical staircase climb equivalent to 4 floors, with no physical ramp alternatives or localized platform lifts installed.
Absence of Orientation Tracks: The open-to-sky walkways, common podium paths, and approaches leading to the individual wing entrances completely lack tactile warning and guiding blocks (directional grooved tiles), making autonomous navigation highly hazardous for blind residents.
Statutory Mandate & Prayer:
Under the Unified Development Control and Promotion Regulations (UDCPR) 2020 of Maharashtra, statutory verification of barrier-free design is a structural prerequisite for completion clearances. We urgently pray that the Building Permission Department and the Social Welfare Department withhold the grant of a final Occupancy Certificate (OC) to Majestique Landmarks for the Majestique Marbella site until the developer modifies the interactive control interfaces (such as installing tactile overlay frames/Braille indicators) and corrects the architectural access paths to the amenities.
Sincerely,
Siddhant Chothe and Anjana Kale

Real Estate Violations

1. **MahaRERA Form B (Declaration under Oath by the Promoter):** The Promoter has given a statutory undertaking via Form B to comply with all local municipal rules. By failing to install barrier-free infrastructure mandated by UDCPR 2020, the promoter is in direct breach of their sworn declaration to MahaRERA.
2. **The Maharashtra Lift Act and Rules (Statutory Lift Clearance):** MahaRERA mandates a risk-free path to legal handover. Because the capacitive flat touch-panels render the lifts non-compliant under the Lift Inspector's structural benchmarks for public safety, the builder cannot secure clear, non-conditional statutory lift permits.
3. **Real Estate Act 2016:** An amenity that cannot physically be accessed by a segment of allottees due to structural barriers (such as stairs-only configurations) is a complete failure to deliver the service in a legally functional state, constituting an operational defect under Section 11.
4. **MahaRERA Order No. 57 (Mandatory Disclosure of Facilities):** This regulation forces every promoter to explicitly declare the exact nature of the common amenities and common areas in the Agreement for Sale.

Municiple And State Laws

1. Unified Development Control and Promotion Regulations (UDCPR) 2020: Chapter 9 / Regulation 33.1 (Mandatory facilities for Persons with Disabilities for granting an Occupancy Certificate).

National Mandates

1. National Building Code (NBC) 2016: Part 3, Section 13 (Mandatory audio announcements and Braille/tactile indicators in high-rise residential lifts).
2. The Rights of Persons with Disabilities (RPWD) Act, 2016: Section 44 (Mandatory accessibility standards for all public and private common-use buildings).